

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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NATALIE BURKE,

Plaintiff,

Index No.:

- against -

CITY OF NEW YORK,
BERMALY NUNEZ, and,
JOHN DOES 1-5

SUMMONS

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiff an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR § 504(3) as the events at issue occurred in Kings County.

Dated: New York, New York
July 2, 2020

LUMER LAW GROUP
Attorneys for Plaintiff

By:



Michael Lumer, Esq.
223 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

Defendants' Addresses:

The City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

PO Bermaly Nunez, Tax 939796
263 Tompkins Avenue
Brooklyn, New York 11216

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
NATALIE BURKE,

Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK,
BERMALY NUNEZ, and,
JOHN DOES 1-5,

Defendants.

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Plaintiff NATALIE BURKE, by her attorneys, the Lumer Law Group, hereby
allege upon information and belief as follows:

1. At all times hereinafter mentioned, plaintiff NATALIE BURKE an adult
female resident of Kings County, in the City and State of New York.

2. At all relevant times hereinafter mentioned, defendant City of New York (the
“City”) was and is a municipal corporation duly organized and existing under and by virtue
of the laws of the State of New York and acts by and through its agencies, employees and
agents, including but not limited to, the New York City Police Department (“NYPD”) and
its employees and agents.

3. At all relevant times hereinafter mentioned, defendant Bermaly Nunez was
employed by City as a member of the NYPD under Tax No.: 939796. Nunez is sued herein
in his/her individual capacity.

4. At all relevant times hereinafter mentioned, defendants John Doe 1-5, were individuals employed by the City as members of the NYPD whose identities are unknown to plaintiff at this time. The Doe defendants are sued herein in their individual capacity.

5. A Notice of Claim was timely served by the plaintiff upon the defendant City of New York.

6. The City of New York subsequently conducted an examination of the plaintiff pursuant to General Municipal Law §50-H.

7. At least thirty days have passed since service of plaintiff's Notice of Claim, and adjustment and payment thereof has been neglected or refused by the City of New York.

8. Plaintiff has complied with all obligations, requirements, and conditions precedent to commencing an action against New York City under New York law.

9. On September 12, 2017, the Hon. Elisa Koenderman, sitting in the IDV Part in Supreme Court, Queens County, issued a limited order of protection ("LOOP") barring Terron Johnson from, in part, assaulting, stalking, harassing, menacing, or engaging in other such unlawful conduct against plaintiff. That LOOP did not expire until September 11, 2018, and was in effect on July 2, 2018.

10. During the morning hours of July 2, 2018, plaintiff was present at 386 Madison Street, Brooklyn, New York (the "premises").

11. Plaintiff was present at the premises with her infant children TJ and NB, as well as the father of the two children, Terron Johnson.

12. An argument occurred between Johnson and plaintiff, during which Johnson first faked as though he was going to strike plaintiff, and then struck plaintiff and assaulted plaintiff.

13. Any physical contact attempted by plaintiff was performed in self-defense and occurred after Johnson had struck and assaulted plaintiff.

14. Plaintiff telephoned 911 from the scene.

15. Members of the NYPD, including, upon information and belief, defendant Nunez and the Doe defendants, responded to the premises.

16. Plaintiff told the responding officers, including defendant Nunez, that Johnson had punched her and pulled her hair and otherwise assaulted her.

17. Plaintiff told the responding officers, including defendant Nunez, that there was a LOOP against Johnson.

18. One or more officers on the scene confirmed the existence of the LOOP.

19. Upon information and belief, Johnson separately told the defendants, including defendant Nunez, that plaintiff punched him and struck him with a broomstick.

20. Notwithstanding plaintiff's complaints that she had been assaulted, battered, and otherwise subject to criminal acts by Johnson, which would also violate the LOOP, defendant Nunez arrested or caused plaintiff—and only plaintiff—to be placed under arrest.

21. Plaintiff had not engaged in any criminal conduct that day. Rather, she was the victim of domestic violence perpetrated by Terron Johnson, whom defendants knew was already the subject of a LOOP. Any force or threats of force employed by plaintiff were part

of her reasonable response to the domestic violence threatened by and actually engaged in by Johnson, and there was no probable cause to arrest plaintiff for any crime or offense on July 2, 2018.

22. Plaintiff was handcuffed and removed from the scene to a local NYPD station house.

23. Terron Johnson was not arrested, nor was he issued a summons or desk appearance ticket, or charged in any way for his actions or for violating the LOOP.

24. Plaintiff was eventually taken to Central Booking, where she was jailed for a period of many hours.

25. After being jailed for over 30 hours, plaintiff was criminally charged by the Kings County District Attorney's Office ("KCDA") under CR-030601-18KN with various crimes, including: menacing in the second and third degree, endangering the welfare of a minor, criminal possession of a weapon in the fourth degree, and assault in the third degree.

26. Plaintiff was required to return to court to defend herself against these charges.

27. It was reasonably foreseeable that the arrest and/or prosecution of plaintiff could or would interfere with her parental and custodial rights and relationship with her children, and the fundamental rights of family integrity and parental authority.

28. It was reasonably foreseeable that the arrest and/or prosecution of plaintiff could or would interfere with her employment.

29. At the time of her arrest, plaintiff was employed as a domestic violence case worker with a non-profit organization committed to providing family support services in a number of areas to less advantaged New Yorkers.

30. As a result of this arrest, plaintiff was immediately suspended from work, pending the outcome of her criminal case and the organization's own inquiry.

31. Terron Johnson was granted custody of plaintiff's two minor children immediate after the arrest, stripping plaintiff of her custodial rights and interfering, limiting, and otherwise depriving plaintiff of her parental rights.

32. The Administration for Children's Services ("ACS") initiated an investigation into plaintiff in Family Court. Plaintiff was therefore forced to repeatedly return to Family Court to fight for her parental rights and custody of her children, which had been taken from her as a result of her arrest and defendants' decision to ignore her complaints, and the existing LOOP, and not arrest Johnson.

33. On or about August 13, 2019, the criminal case was dismissed and sealed, in accordance with an adjournment in contemplation of dismissal, to which plaintiff had agreed in an attempt to expedite the lifting of her suspension from work, and to begin the process of regaining custody of her children.

34. Upon information and belief, only after receiving confirmation of the dismissal of the criminal case, ACS concluded that the charges against plaintiff were unfounded, and the petition was dismissed in September or October 2019.

35. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983)

36. Plaintiff NATALIE BURKE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

37. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

38. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

39. The acts complained of were carried out by the individual defendants acting in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

40. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

41. The acts complained of deprived plaintiff or her right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from excessive;
- c. to be free from seizure and arrest absent probable cause;
- d. to receive equal protection under the law; and,
- e. to be free from unwarranted and malicious criminal prosecution.

42. The defendants' conduct was wanton, deliberate, or otherwise sufficiently reckless as to entitle plaintiff to punitive damages from each of the individual defendants.

43. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer the loss of custody of her minor children, the deprivation of her rights as a parent, interference with her employment, physical and emotional injuries, mental anguish, loss of liberty, and the loss of her constitutional rights, in an amount in excess of the jurisdictional minimum of this Court.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment, and
Denial of a Fair Trial Pursuant to 42 USC §1983)

44. Plaintiff NATALIE BURKE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

45. The individual defendants willfully and intentionally seized, arrested, and caused plaintiff to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

46. To the extent that any of the individual defendants did not affirmatively seize or place plaintiff under arrest, each such defendant was aware that plaintiff's constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

47. As a result of their unlawful arrest by the defendants, plaintiff was imprisoned and deprived of her liberty.

48. Plaintiff was conscious of the deprivation of their liberty and did not consent to any such deprivation.

49. The individual defendants fabricated and withheld material evidence, and misled prosecutors in order to manufacture a justification for the initial seizure of the plaintiff, as well as justify their subsequent decision to arrest and imprison her, despite the absence of probable cause.

50. The individual defendants forwarded the fabricated evidence to the KCDA or otherwise knowingly caused the KCDA to be materially misled as to the true circumstances and facts surrounding the seizure and arrest of the plaintiff, did so with the intent of bringing about and sustaining plaintiff's criminal prosecution despite their knowledge that there was

no probable cause to justify said prosecution, and in so doing caused plaintiff to be deprived of her liberty.

51. To the extent that any of the individual defendants did not affirmatively seize or place plaintiff under arrest, or fabricate evidence or engage in direct communications with the KCDA as alleged herein, said defendant was aware that the other individual defendant was or would be engaged in this unconstitutional conduct, and that plaintiff's constitutional rights were being and would continue to be violated, and yet failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiff from harm, despite ample opportunity to do so.

52. The individual defendants, individually and collectively, subjected plaintiff to (i) false arrest and imprisonment, and (ii) denial of due process and the right to a fair trial through the fabrication of evidence, thereby violating, or aiding and abetting in the violation of, plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

53. The defendants' conduct was wanton, deliberate, or otherwise sufficiently reckless as to entitle plaintiff to punitive damages from each of the individual defendants.

54. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer the loss of custody of her minor children, the deprivation of her rights as a parent, interference with her employment, physical and emotional injuries, mental anguish, loss of liberty, and the loss of her constitutional rights, in an amount in excess of the jurisdictional minimum of this Court.

THIRD CAUSE OF ACTION

(Violation of Equal Protection Clause
Pursuant to 42 USC §1983)

55. Plaintiff NATALIE BURKE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

56. The defendants are treating plaintiff in a markedly and significantly different manner than Terron Johnson, who was similarly situated to plaintiff at the time of the defendants' decision to arrest plaintiff, but not Terron Johnson.

57. Plaintiff called 911 and complained in sum and substance that she was the victim of domestic violence. When the defendants arrived, plaintiff repeated to the defendants that Johnson had, in part, punched her and pulled her hair.

58. Plaintiff also informed the defendants that the LOOP was in place, and thus Johnson had also violated the court's order, and thus was subject to arrest for criminal contempt.

59. Regardless of whether probable cause arguably existed for plaintiff's arrest, defendants also had probable cause to arrest Terron Johnson for assaulting, battering, menacing, and harassing plaintiff, and were further required to arrest Johnson for violating the LOOP.

60. Notwithstanding the foregoing, defendants deliberately chose to arrest plaintiff for allegedly punching and striking Terron Johnson, while simultaneously deciding not to arrest Terron Johnson, despite the fact that he had struck and assaulted plaintiff and violated the LOOP.

61. Defendants' disparate treatment of plaintiff was the result of her gender.

62. Even if defendants' conduct is not related to plaintiff's membership in a protected class, there was no rational basis for defendants to seize arrest plaintiff but forego the arrest of Johnson, who was similarly situated to plaintiff.

63. By engaging in such conduct, the defendants have violated the plaintiff's right to equal protection under the law as provided by the Fourteenth Amendment to the United States Constitution.

64. The defendants' deliberate decision not to arrest Johnson was a proximate cause of plaintiff's injuries, including, but not limited to, the loss of custody of her children, as defendants' actions falsely and inaccurately served to depict plaintiff as having engaged in violent criminal conduct in the presence of her children, while presenting Terron Johnson as nothing more than a victim.

65. The defendants' conduct was wanton, deliberate, or otherwise sufficiently reckless as to entitle plaintiff to punitive damages from each of the individual defendants.

66. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer the loss of custody of her minor children, the deprivation of her rights as a parent, interference with her employment, physical and emotional injuries, mental anguish, loss of liberty, and the loss of her constitutional rights, in an amount in excess of the jurisdictional minimum of this Court.

FOURTH CAUSE OF ACTION

(State Law Claims for False Arrest and Imprisonment)

67. Plaintiff NATALIE BURKE repeats and realleges each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

68. Plaintiff was subjected to false arrest and false imprisonment when she was intentionally, willfully, maliciously, and/or with reckless disregard, seized, searched, and arrested without probable cause by the individual defendants, and then imprisoned against her will until the KCDA directed that they be released from custody.

69. The individual defendants are liable to plaintiff under state law, for false arrest and imprisonment.

70. The municipal defendant, the City of New York, is vicariously liable for the acts of the individual defendants, who were at all relevant times herein acting within the scope of their employment as subordinate officers and agents of the municipal defendant, and thus the municipal defendant is liable to the plaintiff for the aforementioned bad acts of its agents and under state law, including false arrest and imprisonment.

71. By reason thereof, the City of New York and the individual defendants have caused plaintiff to suffer the loss of custody of her minor children, the deprivation of her rights as a parent, interference with her employment, physical and emotional injuries, mental anguish, loss of liberty, and the loss of her constitutional rights, in an amount in excess of the jurisdictional minimum of this Court.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
July 2, 2020

LUMER LAW GROUP
Attorneys for Plaintiff

By: _____



Michael Lumer, Esq.
223 Broadway, Suite 900
New York, New York 10279
(212) 566-5060

VERIFICATION

Michael Lumer, affirms under penalty of perjury that:

1. I am the attorney for the plaintiff in the within action, am duly admitted to practice law before the Courts of New York State, and make this verification pursuant to CPLR 2106 and further pursuant to CPLR 3020(d)(3).
2. This verification is based on extensive interviews with plaintiff and a review of the files and records in my possession.
3. I have read and know the contents of the foregoing Complaint, and verify the same are true based on my knowledge, except as to those matters alleged upon information and belief, and as to those matters, I believe them to be true.
4. The plaintiff does not reside in the same county wherein my office is located and therefore I make this verification on plaintiff's behalf pursuant to CPLR 3020(d)(3).

Dated: New York, New York
July 2, 2020



Michael Lumer